

Authoritarian Transitional Justice

Mara R. Revkin

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Abstract

The field of transitional justice, which originated in post-Cold War transitions from authoritarianism and communism to democracy, has since grown to encompass a wide range of mechanisms and processes that address large-scale past abuses including prosecutions, truth commissions, and reparations. This Chapter describes an emerging phenomenon in which authoritarian regimes—historically, the targets of transitional justice processes implemented by successor democracies—have increasingly co-opted transitional justice language and institutions to advance political, ideological, and economic goals contrary to democracy and human rights. Examples include the use of trials, truth commissions, and other mechanisms to punish political opponents, control historical narratives, and attract foreign aid or investment. This Chapter examines patterns in the use of “transitional justice”-like institutions by autocracies and backsliding democracies in wide-ranging contexts including China, Poland, Rwanda, and Tunisia, explores grassroots transitional justice efforts by opposition and civil society actors working in the shadow of these states, and highlights open debates and questions for further research.

I. Introduction

The modern concept of “transitional justice” emerged in the 1980s as scholars, practitioners, and policymakers looked for guidance to support post-authoritarian and post-communist transitions to democracy in Eastern Europe and Latin America during and after the Cold War.¹ Some scholars trace the origins of the field earlier to the aftermath of World War II when the Allies administered the Nuremberg and Tokyo tribunals to prosecute leaders of defeated Nazi Germany and its ally Japan.² Today, these trials and Nuremberg in particular are recognized as a defining moment in the development of international criminal law, which is one of several mechanisms that comprise the broader field now described as transitional justice. This Chapter focuses on this broader contemporary field of post-Cold War transitional justice, which includes a much wider range of processes and mechanisms—not only criminal prosecutions by domestic, hybrid, or international courts and tribunals like Nuremberg, but also: truth commissions and other fact-finding bodies; lustration or vetting processes that restrict former government personnel or other perpetrators from employment in the public sector or holding political offices; material reparations such as monetary compensation or land restitution; symbolic reparations such as apologies, memorials, or the renaming of streets and other landmarks; institutional or legal reforms that make structural changes to constitutions or other important laws, the government and distribution of power between its branches, the military and other state security services, or other core features and functions of states; and dialogue or reconciliation processes that seek to rebuild social cohesion and repair relations between groups on opposing sides of a conflict.³

For the purposes of this Chapter, I define transitional justice as *a range of processes and mechanisms that governments have implemented in response to widespread past abuses, committed against the population as a whole or particular identity groups, with the stated goal of achieving a “transition” or other systemic changes in the state and society.*⁴ The past abuses that transitional justice seeks to address often occur during civil wars, periods of extreme political repression by autocracies, or violent revolutions, but they can also occur in democracies and in times of peace.⁵ They can be committed by a predecessor government or other state or non-state actors, and they are defined subjectively from the perspective of the government that implements transitional justice. This definition is intentionally agnostic as to the intended outcomes of transitional justice to allow for the possibility of “authoritarian transitional justice,” in contrast with the United Nations’ definition as “the full range of processes and mechanisms associated with a society’s attempts to come to terms with a legacy of large-scale past abuses, *in order to ensure accountability, serve justice and achieve reconciliation*” and other definitions that explicitly identify

¹ See Mara Revkin, Ala Alrababah & Rachel Myrick, *Evidence-Based Transitional Justice: Incorporating Public Opinion into the Field, with New Data from Iraq and Ukraine*, 133 YALE L.J. 1582, 1593 (2024).

² See, e.g., Ruti G. Teitel, *Transitional Justice Genealogy*, 16 HARV. HUM. RTS. J. 69, 70 (2003) (describing Nuremberg as the “most recognized symbol” of “Phase I of the genealogy [of transitional justice], the postwar phase, [that] began in 1945”).

³ See Revkin, Alrababah & Myrick, *supra* note 1, at 1596–1610.

⁴ This definition is inspired by Ruti Teitel’s earlier definition of transitional justice as “that conception of justice associated with periods of political change,” but is more specific in its focus on state-led processes that are initiated in response to widespread past abuses. See Ruti Teitel, *The Law and Politics of Contemporary Transitional Justice*, 38 CORNELL INT’L L.J. 837, 837 (2005).

⁵ For example, the author’s dataset-in-progress with Gabriella Levy and Roya Talibova classifies the United States’ Senate Select Committee on Intelligence’s study of the CIA detention and interrogation program as a form of transitional justice (a truth commission). On file with the authors and forthcoming from Gabriella Levy, Mara Revkin & Roya Talibova, *Collaborative Research: Legitimacy and Efficacy of Transitional Justice Institutions in Comparative Perspective*, U.S. NAT’L SCI. FOUND. (June 5, 2024), https://www.nsf.gov/awardsearch/showAward?AWD_ID=2341377&HistoricalAwards=false.

democratization as a goal.⁶ Devin Pendas makes this point in comparing the two postwar Germanys, both of which implemented forms of transitional justice to address Nazi crimes, yet the Federal Republic in the West became a democracy while the German Democratic Republic in the East became a communist dictatorship. Transitional justice, he concludes, “does not necessarily produce only one kind of political outcome. It can be democratizing, but it can also help build authoritarianism.”⁷

In contrast with older definitions of transitional justice that reflect normative assumptions about the desired outcome and direction of a transition⁸—always *to* democracy from some other previous regime type—the definition above is intentionally descriptive and outcome-agnostic in order to capture a much wider range of processes that are not necessarily linear and may have objectives other than democratization. Broader definitions include forms of transitional justice implemented by non-state actors including armed groups,⁹ tribal or customary authorities,¹⁰ corporations,¹¹ and civil society organizations or movements,¹² but this Chapter’s scope is intentionally limited to transitional justice implemented by *de jure* states.¹³

Although transitional justice is most commonly associated with transitions from communism or authoritarianism to democracy, the term is increasingly used in other contexts including by authoritarian regimes to describe processes, policies, and institutions that have similar names and forms (e.g., truth commissions), but with very different objectives. The United Nations has recognized this widening range of contexts as including “weakly institutionalized post-conflict settings, contexts of ongoing conflict, situations affected by terrorism or violent extremism, stagnating political transitions, and even well-established democracies dealing with historical injustices.”¹⁴ Authoritarian governments have used transitional justice mechanisms to selectively punish their political opponents while shielding themselves from accountability. They have also used transitional justice mechanisms to control and distort the historical record of past abuses to fit the government’s preferred narrative. Another common pattern is the instrumental use of limited transitional justice measures as a tactical

⁶ U.N. Secretary-General, *The Rule of Law and Transitional Justice in Conflict and Post-Conflict Societies*, ¶ 8, U.N. Doc. S/2004/616 (Aug. 23, 2004) (emphasis added); see also *infra* note 8 and accompanying text.

⁷ See DEVIN O. PENDAS, DEMOCRACY, NAZI TRIALS, AND TRANSITIONAL JUSTICE IN GERMANY, 1945–1950, at 6 (2020).

⁸ See, e.g., TRANSITIONAL JUSTICE: HOW EMERGING DEMOCRACIES RECKON WITH FORMER REGIMES (Neil J. Kritz ed., 1995).

⁹ See, e.g., Cyanne E. Loyle & Helga Malmin Binningsbo, *Justice During Armed Conflict: A New Dataset on Government and Rebel Strategies*, 62 J. CONFLICT RESOL. 442, 447 (2018) (finding that approximately 10 percent of transitional justice processes observed during conflicts were initiated by non-state armed groups based on an empirical analysis, with examples including the Shining Path in Peru).

¹⁰ See generally Lars Waldorf, *Local Transitional Justice: Customary Law, Healing Rituals, and Everyday Justice*, in AN INTRODUCTION TO TRANSITIONAL JUSTICE 169 (Olivera Simić ed., 2d ed. 2020).

¹¹ See generally Julia Emtseva, *Philanthropic Justice: The Role of Private Foundations in Transitional Justice Processes*, 44 MICH. J. INT’L L. 219 (2023).

¹² See generally David Backer, *Civil Society and Transitional Justice: Possibilities, Patterns and Prospects*, 2 J. HUM. RTS. 297 (2003).

¹³ In previous work with coauthors, I have used a similar but broader definition that could include forms of transitional justice implemented by non-state actors such as tribes, armed groups, and *de facto* states, which are beyond the scope of this Chapter’s focus on the use of transitional justice by *de jure* states. See Revkin, Alrababah & Myrick, *supra* note 1, at 1593 (defining transitional justice as “forms of justice that seek to bring about social and political change following major episodes of societal trauma or crises”).

¹⁴ U.N. Secretary-General, *Guidance Note of the Secretary-General: Transitional Justice—A Strategic Tool for People, Prevention and Peace* 2 (2023), https://www.ohchr.org/sites/default/files/documents/issues/transitionaljustice/sg-guidance-note/2023_07_guidance_note_transitional_justice_en.pdf.

concession to stave off demands for more sweeping reforms, or to appeal to the United Nations, World Bank, and other major funders of humanitarian and development assistance.¹⁵

Previous scholarship on the use of transitional justice by authoritarian regimes consists largely of single-country studies. This Chapter is, to my knowledge, the first attempt to describe broad patterns in authoritarian transitional justice across a range of countries, regime types, and mechanisms.¹⁶ It provides a brief overview of the history of transitional justice, its role in efforts by the United States and Western European countries to promote democracy in post-communist, post-conflict, and developing countries, and recent critiques of the field. The subsequent Parts situate authoritarian transitional justice in the context of other types of “atypical” transitional justice, describe emerging patterns in the use of transitional justice by authoritarian regimes and backsliding democracies, followed by a discussion of bottom-up and grassroots transitional justice efforts organized by opposition and civil society actors working in the shadow of these states. The Chapter concludes with a discussion of open debates and questions for further research.

II. The Origins of Transitional Justice in Efforts to Promote Western Democracy

The concept of “transitional justice” emerged in the late 1980s with the end of the Cold War as scholars, practitioners, and policymakers looked for guidance to support post-authoritarian and post-communist transitions to market capitalist democracies in Eastern Europe and Latin America.¹⁷ During these years, the United States and Western European donors became increasingly interested in funding democratization and transitional justice programs, motivated partially by altruistic concerns about human rights conditions in the many countries undergoing such transitions, but also—and primarily, in the view of some scholars—by their strategic interests in shaping the political and economic future of these countries.¹⁸ Dustin Sharp has observed that “transitional justice initiatives often serve the purpose of replicating essentially Western liberal economic and governance models.”¹⁹ By 2011, it was estimated that more than one billion dollars had been spent on transitional justice programs around the world,²⁰ mostly by the United States and other Western European countries and private institutions that were eager to support emerging democracies in countries that had been part of the Soviet Union (in Eastern Europe and Central Asia) or under its influence (in Latin America).²¹ Much of this funding has taken the form of conditional loans and foreign aid to developing and

¹⁵ See generally Marc Polizzi & Jeffrey King, *Aid for Justice? Analyzing the Impact of Foreign Aid on Recipient Transitional Justice Implementation*, 26 INT’L J. HUM. RTS. 611 (2022).

¹⁶ PENDAS, *supra* note 7, at 6–7, 18 (developing this argument from the history of criminal trials for Nazi crimes in Germany between 1945 and 1950).

¹⁷ See Revkin, Alrababah & Myrick, *supra* note 1, at 1593.

¹⁸ See generally Helen V. Milner & Dustin H. Tingley, *Introduction: Geopolitics and Aid*, in 1 GEOPOLITICS OF FOREIGN AID 1 (Helen V. Milner & Dustin Tingley eds., 2013).

¹⁹ Dustin N. Sharp, *Interrogating the Peripheries: The Preoccupations of Fourth Generation Transitional Justice*, 26 HARV. HUM. RTS. J. 149, 159 (2013).

²⁰ Harvey M. Weinstein, *Editorial Note: The Myth of Closure, the Illusion of Reconciliation: Final Thoughts on Five Years as Co-Editor-in-Chief*, 5 INT’L J. TRANSITIONAL JUST. 1, 1 (2011).

²¹ Paige Arthur, *How “Transitions” Reshaped Human Rights: A Conceptual History of Transitional Justice*, 31 HUM. RTS. Q. 321, 364–67 (2009) (describing a series of early conferences on transitional justice between 1988 and 1994 organized by American democracy-promoting organizations including the Aspen Institute, the Ford Foundation, and the National Endowment for Democracy).

conflict-affected countries in exchange for their implementation of neoliberal economic policies and democracy reforms, including transitional justice.²²

In recent years, scholars of transitional justice in diverse disciplines ranging from critical theorists to quantitative social scientists have raised at least three sets of related concerns about the persistence of these Cold War-era ideological, normative, and regional biases. A first set of concerns focuses on the political economy of a growing “transitional justice industry”²³ fueled by Western donor countries and consultants. This industry has promoted the standardization of “transitional justice blueprint[s] ready for export”²⁴ that reflect donors’ assumptions and geopolitical interests, without adequate knowledge of local contexts or consultation with affected communities.²⁵ This “copy-and-paste”²⁶ approach has been criticized as intellectually unrigorous, at best.²⁷ At worst, it can be harmful to the purported beneficiaries of transitional justice programs when foreign-designed models conflict with local norms, beliefs, and preferences.²⁸ For example, the design of early truth commissions was heavily influenced by Christian beliefs about the cathartic and healing benefits of confession,²⁹ which are not universally shared. One study of Colombia’s truth commission found that its emphasis on the “Christian notion of confession”—which promised that the reciprocal exchange of atonement and forgiveness between perpetrators and victims would bring healing and purification—had “devastating” consequences for victims who felt “abandoned, with no greater self-knowledge or truth.”³⁰

A second and related set of concerns has focused on the weakness of theories of causal change and inadequate empirical data, both of which are necessary conditions for evidence-based policymaking.³¹ In the transitional justice context, such theories would specify the logic and mechanisms through which a particular transitional justice mechanism (e.g., a truth commission or tribunal) should be expected to increase the likelihood of a particular outcome (e.g., reconciliation, peace, democratization). Ideally, transitional justice programs would be subjected to rigorous empirical studies of their actual effects in comparison with their intended effects (sometimes described as

²² Pierre Hazan, *Measuring the Impact of Punishment and Forgiveness: A Framework for Evaluating Transitional Justice*, 88 INT’L REV. RED CROSS 19, 26 (2006) (describing this practice as “cheque-book diplomacy”).

²³ See, e.g., Duncan McCargo, *Transitional Justice and Its Discontents*, 26 J. DEMOCRACY 5, 5–6 (2015) (observing that the field “has become a vast global industry that employs tens of thousands of people”).

²⁴ See Makau Mutua, *What Is the Future of Transitional Justice?*, 9 INT’L J. TRANSITIONAL JUST. 1, 5 (2015).

²⁵ See, e.g., Rosemary Nagy, *Transitional Justice as Global Project: Critical Reflections*, 29 THIRD WORLD Q. 275, 275 (2008) (raising the concern that transitional justice is “[s]teeped in Western liberalism . . . [and] may be alien” to the societies in which it is implemented).

²⁶ Luke Moffett, *The Forgotten Lessons of Negotiated Redress: Wassenaar, the Struggle for Reparations, and Human Rights*, in REDEFINING REPARATIONS: WASSENAAR 1952 AND THE GLOBAL POLITICS OF REPAIR 149, 160 (Lorena De Vita & Constantin Gosciler eds., 2025) (describing “a danger in transitional justice . . . being rolled out as a standardized toolkit to be applied in diverse contexts”).

²⁷ See, e.g., Mutua, *supra* note 24, at 5 (describing the “dogmatic universality” of such blueprints as “intellectually indefensible” because “[i]n matters of social transformation, close attention must be paid to context and location”).

²⁸ See, e.g., Moffett, *supra* note 26, at 160 (discussing the risks of applying a “standardized toolkit” of transitional justice).

²⁹ BERT INGELAERE, *INSIDE RWANDA’S GACACA COURTS: SEEKING JUSTICE AFTER GENOCIDE* 3 (2016) (finding that many tribunals and truth commissions have been based on “Western assumptions that establishing the truth would lead to spiritual or Christian redemption”).

³⁰ See Rebecca C. Bartel, *Confession and the Anthropology of Forgiveness: Reflections on Colombia’s Processes of Transitional Justice*, 24 J. LATIN AM. & CARIBBEAN ANTHROPOLOGY 145, 146, 152–53 (2019).

³¹ See, e.g., Paul Gready & Simon Robins, *Transitional Justice and Theories of Change: Towards Evaluation as Understanding*, 14 INT’L J. TRANSITIONAL JUST. 280, 283 (2020) (describing theories of change as “testable hypotheses” that describe “how activities lead to outcomes, highlighting assumptions, justifications and pathways”).

“impact evaluations”). If and when programs have no effect—or worse, unintended harmful effects as in the above example from Colombia³²—programs would be suspended and revised to incorporate evidence and lessons learned. In reality, however, the field continues to rely on weak and largely untested theories and assumptions that reflect the biases of the predominantly North American and Western European governments, institutions, and scholars who shaped the early development of the field and continue to dominate it.³³

A third critique, and the one most relevant to this Chapter, is that the field has ignored the increasingly diverse contexts in which policies and programs described as “transitional justice” are being implemented, including in countries that are not undergoing transitions at all.³⁴ This bias in case selection and recent scholarly efforts to correct it are the focus of the next Part.

III. Patterns of “Atypical” Transitional Justice in Autocracies and Democracies

Early transitional justice scholarship focused heavily on a small number of cases often described as “canonical” or “paradigmatic” including South Africa³⁵ and Chile,³⁶ while largely ignoring many other cases and entire regions, particularly the Middle East and Asia.³⁷ At the same time, the vast majority of empirical research on transitional justice has been conducted by scholars at institutions in North America and Western Europe. These geographical inequalities and blind spots are problematic for several reasons that I and coauthors have discussed at length in previous work. In particular, scholars from developing and conflict-affected countries where transitional justice is most likely to be implemented are least likely to have a voice in the production of knowledge. At the same time, the field’s evidence base and “lessons learned” have been biased by disproportionate attention to a small number of unique cases like South Africa that are unlikely to be generally applicable to very different contexts.³⁸

³² Bartel, *supra* note 30.

³³ See, e.g., Revkin, Alrababah & Myrick, *supra* note 1, at 1587 (warning that the field is based on remarkably little evidence “despite the high-stakes—arguably ‘life or death’—nature of the transitional justice programs and policies that were implemented for vulnerable populations in some of the most impoverished and war-torn countries in the world”); Gready & Robins, *supra* note 31, at 281 (observing that the field continues to rely “far more on faith than on sound logic or empirical evidence”).

³⁴ See Pádraig McAuliffe, *Transitional Justice’s Expanding Empire: Reasserting the Value of the Paradigmatic Transition?*, 2 J. CONFLICTOLOGY 32 (2011).

³⁵ See, e.g., Christine Carpenter, *Reconsidering Transitional Justice: Revolutions and Regime Change in 20th-Century China*, 20 J. INT’L CRIM. JUST. 597, 601 (2022) (identifying South Africa, which used truth-seeking and amnesty mechanisms to address the abuses of the previous Apartheid government following its first multiracial elections in 1994, as a case that has been particularly influential in shaping the “canon” of transitional justice).

³⁶ See, e.g., HUGO ROJAS, PAST HUMAN RIGHTS VIOLATIONS AND THE QUESTION OF INDIFFERENCE: THE CASE OF CHILE 2 (2022) (describing Chile as “a paradigmatic case of transition from authoritarian rule to liberal democracy”); Marit de Haan & Tine Destrooper, *Using Restorative Justice to Rethink the Temporality of Transition in Chile*, 4 INT’L J. RESTORATIVE JUST. 206, 223 (2021) (describing Chile as a “paradigmatic” case of transitional justice).

³⁷ Revkin, Alrababah & Myrick, *supra* note 1, at 1591 (conducting a systematic review of 329 studies of transitional justice and finding that “cases in the Middle East and Asia are understudied”).

³⁸ See *id.* at 1623–28.

In recent years, a growing number of scholars have begun to correct some of these biases by calling attention to cases of “non-paradigmatic,”³⁹ “atypical,”⁴⁰ or “non-transitional justice”⁴¹—referring to processes, institutions, and contexts that deviate from the field’s formative template of post-Cold War transitions from authoritarianism and communism to democracy, but nonetheless are still described as or functionally resemble “transitional justice.” Scholars have questioned the validity of the field’s traditional assumptions of linear, unidirectional, and normatively desirable transitions *to* democracy *from* previous authoritarian or communist regimes.⁴² These critiques have called for more complex frameworks that better reflect the often non-linear and multi-dimensional nature of transitional justice processes, including setbacks or outright failures to deliver on initial promises and contestation by non-state actors or movements that challenge states’ official processes from outside or below.⁴³

Below, I describe four common ideal-types of polities that have implemented atypical transitional justice: (1) strong democracies, (2) strong autocracies, (3) weak democracies, and (4) weak autocracies. Table 1 classifies these ideal-types by two dimensions: regime type (democracy or autocracy) and strength (weak or strong) at the time of the transitional justice process, with examples of each. By “strength,” I mean the security of a government’s control over territory and state institutions at the time it initiated the transitional justice process. Strength, as defined here, is distinct from the duration of a regime: several of the weak cases listed in Table 1 have been governed by the same leader for decades.⁴⁴

Like all typologies, it simplifies and flattens many more nuanced variations that occur in the real world. Nonetheless, typologies are useful analytical tools for developing new concepts or theories and developing frameworks for more rigorous empirical studies, both qualitative and quantitative, as this Chapter seeks to do by laying out a very preliminary research agenda for further study of authoritarian transitional justice among other atypical types.⁴⁵

³⁹ Valerie Arnould, *Developments in the Field of Transitional Justice*, 36 AFR. POL’Y BRIEF 1, 2 (2021).

⁴⁰ Chandra Lekha Sriram & Jemima García-Godos, *Conclusions and Considerations for Practitioners*, in TRANSITIONAL JUSTICE AND PEACEBUILDING ON THE GROUND: VICTIMS AND EX-COMBATANTS 255, 265 (Chandra Lekha Sriram et al. eds., 2012) (describing these non-traditional forms as “transitional justice without transition and ‘atypical’ transitional justice”).

⁴¹ See Brian Grodsky, *Justice Without Transition: Truth Commissions in the Context of Repressive Rule*, 9 HUM. RTS. REV. 281 (2008); McAuliffe, *supra* note 34.

⁴² See, e.g., Thomas Carothers, *The End of the Transition Paradigm*, 13 J. DEMOCRACY 5, 9 (2002) (arguing that “the almost automatic assumption . . . that any country moving away from dictatorship was ‘in transition to democracy’ has often been inaccurate and misleading” and pointing to the high failure rate of democratic transitions); NOHA ABOUELDAHAB, BROOKINGS DOHA CTR., TRANSITIONAL JUSTICE POLICY IN AUTHORITARIAN CONTEXTS: THE CASE OF EGYPT 2 (2017), https://www.brookings.edu/wp-content/uploads/2017/10/aboueldahab_transitional-justice-policy-in-authoritarian-contexts_english_web.pdf (challenging “the false assumption that all transitions lead—or strive to lead—to liberal democracy”).

⁴³ See, e.g., Tine Destrooper & Elke Evrard, *The (Many) Afterlives of Transitional Justice: Practice-Based Insights on Continuity, Impact and Evolving Justice Struggles*, 19 INT’L J. TRANSITIONAL JUST. 151, 158 (2025) (summarizing focus group discussions with 69 local transitional justice practitioners and concluding that they “rejected a teleological approach that revolves around a delineated moment of transition and proposes a clear endpoint” and that “[i]nstead, they understood transitional justice as a protracted trajectory evolving through various phases or cycles of engagement, punctuated by breakthroughs and setbacks . . . and bifurcating in various directions over time”).

⁴⁴ On the distinction between state strength and regime duration, see Dan Slater & Sofia Fenner, *State Power and Staying Power: Infrastructural Mechanisms and Authoritarian Durability*, 65 J. INT’L AFF. 15, 16 (2011) (“A strong state is the best historical foundation for a durable authoritarian regime, not vice versa.”).

⁴⁵ See David Collier, Jody LaPorte & Jason Seawright, *Putting Typologies to Work: Concept Formation, Measurement, and Analytic Rigor*, 65 POL. RSCH. Q. 217, 225, 227 (2012) (defending typologies against recent criticism and arguing that even a very

Table 1: Examples of Atypical Transitional Justice by Regime Type and Strength

		Regime Strength	
		Strong	Weak
Regime Type	Democracy	Strong Democracies <i>Examples:</i> Canada, Sweden, South Korea	Weak Democracies <i>Examples:</i> Nepal, Tunisia, Poland
	Autocracy	Strong Autocracies <i>Examples:</i> Morocco, Rwanda, Russia	Weak Autocracies <i>Examples:</i> Cambodia, Myanmar, Uganda

In the upper-left quadrant of Table 1, several established democracies have implemented transitional justice processes to acknowledge and investigate their *own* past abuses, provide remedies for victims, and create safeguards against recurrence,⁴⁶ in contrast with more common and better-known cases of new democracies that have investigated the abuses of previous authoritarian regimes. Examples include Canada's Truth and Reconciliation Commission, which investigated the history of residential boarding schools for indigenous children;⁴⁷ Sweden's Truth and Reconciliation Commission for Tornedalians, Kvens and Lantalaïset, which investigated the government's assimilationist "Swedification" policies;⁴⁸ and South Korea's various transitional justice measures including truth commissions, prosecutions of former leaders, and reparations for victims of human rights abuses by previous authoritarian governments.⁴⁹

In the upper-right quadrant are countries that were considered weak and backsliding democracies at the time they initiated transitional justice processes. Historically, transitional justice was believed to be necessary for successful post-conflict and post-authoritarian transitions to democracy, but recent cross-national research and case studies have questioned this assumption. A recent quantitative analysis of 118 transitional democracy spells between 1970 and 2023 found that more than half have experienced democratic backsliding or breakdown after implementing transitional

simple two by two matrix like the one presented here is a valuable exercise that "can push scholars to better organize the typology, tighten its coherence, and think through relations among different components").

⁴⁶ See generally STEPHEN WINTER, TRANSITIONAL JUSTICE IN ESTABLISHED DEMOCRACIES: A POLITICAL THEORY (2014).

⁴⁷ See Rosemary L. Nagy, *The Scope and Bounds of Transitional Justice and the Canadian Truth and Reconciliation Commission*, 7 INT'L J. TRANSITIONAL JUST. 52 (2013).

⁴⁸ See Malin Arvidsson, *The Swedish Truth and Reconciliation Commission for Tornedalians, Kvens and Lantalaïset: A Commissioner's Perspective*, 30 RETHINKING HISTORY 243 (2026).

⁴⁹ See Tae-Ung Baik, *Fairness in Transitional Justice Initiatives: The Case of South Korea*, 19 BUFF. HUM. RTS. L. REV. 169 (2012).

justice measures, and suggests several potential explanations for the observed negative correlation between transitional justice and democratic consolidation.⁵⁰ These include backlash from former regime or military personnel seeking to evade accountability or regain political power, weakening judicial constraints on the current executive, and intensifying political polarization.⁵¹ The cases of Nepal, Tunisia, and Poland provide examples of transitional justice measures implemented in weak or backsliding democracies.

In Nepal, which has attempted three waves of democratization since the 1950s, successive governments have repeatedly refused to follow the Supreme Court's directive to remove unconstitutional amnesty provisions from transitional justice legislation, and have attempted to impeach chief justices.⁵² In Poland, the ruling Law and Justice Party has used transitional justice mechanisms selectively against political opponents and critics both within and outside of the government under a pretext of "delayed decommunization."⁵³ A so-called "muzzle" law enacted in 2019 enables disciplinary measures against judges who criticize the ruling party's actions, including salary cuts and even dismissals.⁵⁴ This and other measures have undermined judicial independence, contributing to democratic erosion.⁵⁵ In Tunisia, which began a process of democratization after the 2011 Arab Spring uprising, transitional justice mechanisms that were initially created to address the former regime's past abuses have since been co-opted by the current government to suppress dissent and legitimize President Kais Saied's efforts to expand his presidential powers since 2021.⁵⁶ Government interference with the transitional justice process has included dismissals of the heads of key institutions including the truth commission and reparations fund,⁵⁷ as well as a refusal to protect judges from intimidation and harassment by police unions.⁵⁸

Autocracies, both weak and strong, have also used mechanisms that they describe as "transitional justice" or analogous terms to advance illiberal political and economic objectives. This often occurs in authoritarian-to-authoritarian transitions where a weak or only partially consolidated autocracy has replaced a preceding autocracy and uses transitional justice mechanisms to differentiate and legitimize the new regime. Cambodia, a weak autocracy in the lower-right quadrant of Table 1, is one example of this path. There, the fall of the Khmer Rouge dictatorship was followed by the rise of Hun Sen, a former Khmer Rouge commander who became increasingly authoritarian as his government consolidated power. After the United Nations proposed an international tribunal to

⁵⁰ See Geoff Dancy & Oskar Timo Thoms, *Transitional Justice and the Problem of Democratic Decline*, 19 INT'L J. TRANSITIONAL JUST. 36 (2025).

⁵¹ See *id.* at 38–40.

⁵² Renée Jeffery & Bikram Timilsina, *Re-democratising Nepal: Transitional Justice and the Erosion of Judicial Independence*, 27 CONTEMP. POL. 550, 551–52 (2021).

⁵³ Monika Nalepa, *Transitional Justice and Authoritarian Backsliding*, 32 CONST. POL. ECON. 278, 279–80 (2021).

⁵⁴ Allyson Duncan & John Macy, *The Collapse of Judicial Independence in Poland: A Cautionary Tale*, 104 JUDICATURE 40, 41–43 (2020).

⁵⁵ Nalepa, *supra* note 53.

⁵⁶ See Amin Taieb, *Tunisia's Transitional Justice in Agony*, JUSTICEINFO (June 13, 2025), <https://www.justiceinfo.net/en/146482-tunisia-transitional-justice-agony.html>.

⁵⁷ See, e.g., Olfa Belhassine, *Tunisia: Transitional Justice Holds Its Breath*, JUSTICEINFO (Sept. 20, 2021), <https://www.justiceinfo.net/en/82343-tunisia-transitional-justice-holds-its-breath.html>; Monia Ben Hamadi, *Tunisia's President Kais Saied Buries the Democratic Progress Deeper and Deeper*, LE MONDE (Aug. 6, 2024), https://www.lemonde.fr/en/le-monde-africa/article/2024/08/06/in-tunisia-the-president-kais-saied-buries-the-gains-of-the-democratic-transition-a-little-more-deeply_6709988_124.html.

⁵⁸ Fadil Aliriza, *The Executive Versus the Judiciary in Tunisia*, MIDDLE E. INST. (June 28, 2022), <https://www.mei.edu/publications/executive-versus-judiciary-tunisia>.

prosecute war crimes, Sen pushed back and negotiated a hybrid tribunal, the Extraordinary Chambers in the Courts of Cambodia (ECCC). Although the tribunal was initially framed as a compromise between national sovereignty and international law, Cambodian judges outnumbered their foreign counterparts, which gave them a functional veto over contested indictments.⁵⁹ The result was a very limited accountability process that targeted only a handful of aging senior Khmer Rouge leaders while enabling Sen to shield his increasingly authoritarian government from scrutiny. The tribunal also served as a public platform through which Sen promoted a selective historical narrative favorable to his ruling party and attempted to build domestic and international legitimacy by claiming credit for peace, economic growth, and some justice—however limited—in the aftermath of a devastating civil war.⁶⁰

Another common pattern occurs in non-transitional strong autocracies, represented by the lower-left quadrant of Table 1, where regimes adopt transitional justice mechanisms to protect or strengthen their own power.⁶¹ In Rwanda (lower-left quadrant of Table 1), the previous extremist authoritarian regime responsible for the 1994 genocide was overthrown by another authoritarian regime led by Paul Kagame, who has used transitional justice mechanisms including community-based “Gacaca” courts and memory laws to centralize power and promote a “hegemonic” historical narrative.⁶² Russia is another example of a strong autocracy that has used a limited transitional justice mechanism, the Commission to Counteract Attempts at Falsifying History to Damage the Interests of Russia, to shape public memory and historical narratives about Joseph Stalin’s repressive rule in ways that strengthen the current government’s legitimacy and discredit alternative perspectives.⁶³

Scholarly recognition of the use of transitional justice by authoritarian regimes and backsliding democracies is relatively recent. In an influential 2008 article, Bronwyn Anne Leebaw foreshadowed the possibility that governments might use transitional justice to shield themselves from accountability and distort collective memory of the state’s role in past harms, though she did not provide specific examples.⁶⁴ Over the next few years, several scholars began to explore patterns and case studies of authoritarian transitional justice in more depth. Cyanne Loyle and Christian Davenport introduced the term “transitional injustice” to describe the subversion of these processes by governments pursuing their own political ends, drawing on post-genocide Rwanda.⁶⁵ Noha Aboueldahab’s study of Egypt appears to be the earliest scholarly treatment framed explicitly around transitional justice policy in

⁵⁹ Scott Luftglass, *Crossroads in Cambodia: The United Nation’s Responsibility to Withdraw Involvement from the Establishment of a Cambodian Tribunal to Prosecute the Khmer Rouge*, 90 VA. L. REV. 893, 943 (2004).

⁶⁰ JULIE BERNATH, *THE KHMER ROUGE TRIBUNAL: POWER, POLITICS, AND RESISTANCE IN TRANSITIONAL JUSTICE* (2023).

⁶¹ McAuliffe, *supra* note 34, at 37.

⁶² ANURADHA CHAKRAVARTY, *INVESTING IN AUTHORITARIAN RULE: PUNISHMENT AND PATRONAGE IN RWANDA’S GACACA COURTS FOR GENOCIDE CRIMES* (2016); DAVID MWAMBARI, *NAVIGATING CULTURAL MEMORY: COMMEMORATION AND NARRATIVE IN POSTGENOCIDE RWANDA* (2023).

⁶³ Kora Andrieu, *An Unfinished Business: Transitional Justice and Democratization in Post-Soviet Russia*, 5 INT’L J. TRANSITIONAL JUST. 198, 213 (2011) (noting that the Commission, “[a]lthough designed in the vein of a truth commission . . . has little to do with ‘authentic’ transitional justice and seems more a tool for helping the government uphold a historical narrative favorable to it”).

⁶⁴ Bronwyn Anne Leebaw, *The Irreconcilable Goals of Transitional Justice*, 30 HUM. RTS. Q. 95, 118 (2008) (“It is possible for transitional justice institutions to establish accountability, promote remembrance, and challenge denial, yet at the same time advance political myths that obfuscate responsibility, distort the legacy of political violence, and encourage people to forget potentially volatile issues.”).

⁶⁵ Cyanne E. Loyle & Christian Davenport, *Transitional Injustice: Subverting Justice in Transition and Postconflict Societies*, 15 J. HUM. RTS. 126 (2016).

authoritarian contexts.⁶⁶ Devin Pendas reaches a related conclusion in his study of Nazi trials in postwar Germany. Because trials in the Soviet occupation zone helped consolidate a communist dictatorship, he rejects the assumption that transitional justice is inherently liberalizing: “[i]t is a category mistake to think that authoritarian regimes have no concept of justice”⁶⁷ In some cases, authoritarian regimes may adopt the terminology of “transitional justice” and mimic mechanisms associated with transitions to democracy to build international legitimacy.⁶⁸ This is an example of “isomorphic mimicry”⁶⁹ in which authoritarian governments adopt superficial forms of democratic institutions for instrumental reasons—usually to build legitimacy, reduce or co-opt political opposition, or attract foreign aid and investment—but are not genuinely committed to competition, accountability, transparency, or the other purported goals of these institutions.⁷⁰ Other examples of isomorphic mimicry include multi-party elections with pre-determined results,⁷¹ elected bodies that resemble legislatures but only have the power to advise an executive who makes laws unilaterally,⁷² and anti-corruption agencies.⁷³

While autocracies that adopt isomorphic transitional justice mechanisms intentionally design them to mimic examples from transitions to democracy, often making explicit references to “transitional justice” in the names or founding documents of these mechanisms, other autocracies have intentionally avoided using “transitional justice” and other concepts associated with democracy in favor of other terms. For example, the Chinese Communist Party (CCP) has implemented a number of truth-seeking, memorialization, and reparative mechanisms to address past abuses that some scholars have described as functional equivalents of transitional justice.⁷⁴ However, the CCP itself does not use the term, and Chinese diplomats have explicitly criticized Western transitional justice efforts in other countries (including Sri Lanka) as interference in national sovereignty.⁷⁵ Instead, the CCP and Chinese scholars have described these various processes and mechanisms in terms including

⁶⁶ ABOUELDAHAB, *supra* note 42.

⁶⁷ PENDAS, *supra* note 7, at 18.

⁶⁸ See Anna Macdonald, ‘*Somehow This Whole Process Became so Artificial*’: Exploring the Transitional Justice Implementation Gap in Uganda, 13 INT’L J. TRANSITIONAL JUST. 225 (2019); JELENA SUBOTIĆ, *HIJACKED JUSTICE: DEALING WITH THE PAST IN THE BALKANS* (2009).

⁶⁹ MATT ANDREWS, LANT PRITCHETT & MICHAEL WOOLCOCK, *BUILDING STATE CAPABILITY: EVIDENCE, ANALYSIS, ACTION* 31 (2017).

⁷⁰ See, e.g., ACHILLE MBEMBE, *ON THE POSTCOLONY* 142–72 (2001); STEVEN LEVITSKY & LUCAN A. WAY, *COMPETITIVE AUTHORITARIANISM: HYBRID REGIMES AFTER THE COLD WAR* 181–338 (2010); Christopher Walker & Jessica Ludwig, *The Meaning of Sharp Power: How Authoritarian States Project Influence*, FOREIGN AFFS. (Nov. 16, 2017), <https://www.foreignaffairs.com/articles/china/2017-11-16/meaning-sharp-power>; Anna Lührmann & Staffan I. Lindberg, *Keeping the Democratic Façade: Contemporary Autocratization as a Game of Deception* 15–22 (V-Dem Inst., Working Paper Ser. 2018:75, 2018), <https://gupea.ub.gu.se/handle/2077/57397>.

⁷¹ Lührmann & Lindberg, *supra* note 70, at 3, 6.

⁷² MILAN W. SVOLIK, *THE POLITICS OF AUTHORITARIAN RULE* 53–81 (2012).

⁷³ Sabina Schnell, *Mimicry, Persuasion, or Learning? The Case of Two Transparency and Anti-Corruption Policies in Romania*, 35 PUB. ADMIN. & DEV. 277 (2015). But see Christopher Carothers, *Taking Authoritarian Anti-Corruption Reform Seriously*, 20 PERSPS. ON POL. 69 (2022) (arguing that authoritarian regimes curb corruption more frequently and effectively than has been widely assumed through “their own institutional strengths, rather than by mimicking democracies”).

⁷⁴ Daniel Leese & Amanda Shuman, Introduction to *JUSTICE AFTER MAO: THE POLITICS OF HISTORICAL TRUTH IN THE PEOPLE’S REPUBLIC OF CHINA* 1, 18 (Daniel Leese & Amanda Shuman eds., 2023) [hereinafter *JUSTICE AFTER MAO*].

⁷⁵ Press Trust of India, “China Wouldn’t Allow ‘Outside Interference’ in Sri Lanka’s Internal Affairs,” WEEK (India) (Jan. 15, 2020), <https://www.theweek.in/news/world/2020/01/15/china-wouldnt-allow-outside-interference-in-sri-lankas-internal-affairs.html>.

“resolving historical issues,”⁷⁶ “bringing order out of chaos,”⁷⁷ “historical resolutions,” “rectification campaigns,” “rehabilitation,” and “rejuvenation.”⁷⁸

These various forms of transitional justice or other functionally similar mechanisms for dealing with past injustice have been used instrumentally by authoritarian regimes and backsliding democracies to advance particular strategic goals and functional purposes. As the discussion below will illustrate, these purposes include limited and tactical reforms, surveillance and social control, censoring or distorting the historical record and public memory, and international signaling and influence.

The following Parts describe broad patterns that emerge from a review of these practices in different cases.

IV. Limited Reforms and Tactical Concessions

Authoritarian regimes often implement limited reforms or tactical concessions to placate and co-opt opposition, reduce dissent, and project an appearance of responsiveness to the public without genuine change. Examples include amendments to existing laws or new legislation, allowing opposition parties to participate in elections, and permitting civil society organizations to operate while carefully regulating these activities to ensure that they do not seriously challenge the government’s power. Limited reforms and tactical concessions may also include transitional justice measures that provide symbolic inclusion or partial redress for grievances—for example, public memorials, truth commissions, reparations for victims, or dialogues—while avoiding demands for real accountability.

In Morocco, King Mohammed VI created a state-appointed truth commission in 2004, the Equity and Reconciliation Commission (Instance Équité et Réconciliation, IER), as part of a broader campaign to rehabilitate the monarchy’s human rights reputation in Western donor and diplomatic circles.⁷⁹ The monarchy hoped to create a carefully controlled narrative of modernization with limited reforms stopping short of democratization.⁸⁰ The Commission’s mandate was limited to investigating and providing reparations for past human rights violations committed by the previous regime of King Hassan II, King Mohammed VI’s father, without the authority to initiate prosecutions or publicly name perpetrators.⁸¹

In Uganda, President Yoweri Museveni enacted the Amnesty Act of 2000 primarily as a tactical concession to political opposition in the context of growing domestic and international pressure to end the Lord’s Resistance Army insurgency and to address human rights abuses. Although framed as a peacebuilding and reconciliation measure, the amnesty was widely perceived as a political

⁷⁶ See Qin Shao, *The Pursuit of Transitional Justice from Below: A Case Study from Shanghai*, in JUSTICE AFTER MAO, *supra* note 74, at 73, 78.

⁷⁷ Leese & Shuman, *supra* note 74, at 18.

⁷⁸ See DANIEL LEESE, MAO CULT: RHETORIC AND RITUAL IN CHINA’S CULTURAL REVOLUTION 55 (2011).

⁷⁹ Pierre Hazan, *The Nature of Sanctions: The Case of Morocco’s Equity and Reconciliation Commission*, 90 INT’L REV. RED CROSS 399, 402–03 (2008).

⁸⁰ See *id.* at 413 (“The commission was essentially a political marketing tool aimed at lending credibility to the new king, at seducing Western governments with its human rights discourse and at co-opting a part of the Moroccan left-wing opposition and civil society, at the price of stifling political life.”).

⁸¹ Susan Slyomovics, *A Truth Commission for Morocco*, 218 MIDDLE EAST REP. 18, 19 (2001).

compromise that aimed to reduce conflict and weaken opposition forces while preserving authoritarian rule.⁸²

In both countries, these transitional justice mechanisms shielded government perpetrators from accountability. In Morocco, the IER was permitted to investigate the abuses, but not allowed to attribute them to specific perpetrators, some of whom still held senior government positions in 2005.⁸³ In Uganda, the Amnesty Act applied only to Ugandans who had fought against the government since 1986.⁸⁴ Government soldiers were not eligible for amnesty, but the Act created no process to investigate or punish their conduct either.

V. Surveillance and Social Control

Authoritarian regimes often use transitional justice mechanisms—particularly truth commissions, reparations programs, and victim registries—as tools of state surveillance and information-gathering. Under the guise of collecting testimony, identifying victims, and promoting reconciliation, regimes gather information that can be used to monitor and repress opposition. Truth-seeking processes and reparations programs often require victims to register personal details, describe politically sensitive events, or identify perpetrators. These data can then be used by authoritarian regimes to map, infiltrate, and repress networks of activists and opposition groups.

Rwanda's Gacaca courts required community members to publicly identify perpetrators and victims, creating written records that were later used to justify prosecutions. Although described by the government as a mechanism for accountability and reconciliation, another important function of these courts was to collect sensitive information that was used by the ruling Rwandan Patriotic Front to track, prosecute, and intimidate political opponents.⁸⁵

China provides another example. After the Cultural Revolution, the Chinese Communist Party instituted a series of “rehabilitation” and rectification campaigns, which some scholars have characterized as forms of transitional justice,⁸⁶ to review cases of those who had been purged. Each case was reviewed on the basis of the person's *dang'an* (档案), the term for the personnel files that the state maintained for every cadre (a state or party official) and urban worker. These files recorded education, job history, family background, and political activities, as well as “mistakes” (*cuowu*, 错误, the Party's term for recorded political or disciplinary faults) and “self-criticisms” (*zìwǒ pīpíng*, 自我批评, referring to confessional statements that the person was required to write about their discovered

⁸² Sandrine Perrot, *Museveni's Best Enemies: Dilemmas and Political Uses of the Reintegration of Former Lord's Resistance Army (LRA) Commanders in Northern Uganda*, in *WAR VETERANS IN POSTWAR SITUATIONS: CHECHNYA, SERBIA, TURKEY, PERU, AND CÔTE D'IVOIRE* 177, 180 (2012) (“By encouraging and politically exploiting the successful reintegration of a few high-ranking ex-commanders, the Ugandan government has been trying to win over—or at least control—this stronghold of political and military opposition.”).

⁸³ HUM. RTS. WATCH, *MOROCCO'S TRUTH COMMISSION: HONORING PAST VICTIMS DURING AN UNCERTAIN PRESENT* 3, 18 (2005), <https://www.hrw.org/reports/morocco1105wcover.pdf>.

⁸⁴ Amnesty Act, ch. 294, §§ 2–3 (2000) (Uganda) (declaring an amnesty for “any Ugandan who has at any time since the 26th day of January, 1986, engaged in or is engaging in war or armed rebellion against the government of the Republic of Uganda”).

⁸⁵ See, e.g., PHIL CLARK, *THE GACACA COURTS, POST-GENOCIDE JUSTICE AND RECONCILIATION IN RWANDA: JUSTICE WITHOUT LAWYERS* 3, 116 (2010); Susanne Buckley-Zistel, *Remembering to Forget: Chosen Amnesia as a Strategy for Local Coexistence in Post-Genocide Rwanda*, 76 *AFRICA* 131, 144 & n.18 (2006).

⁸⁶ See, e.g., Leese & Shuman, *supra* note 74, at 11–14.

faults). The subjects of these files had no ability to access or challenge any of the information they contained, and the files heavily determined the outcomes of job applications, promotions, applications for housing, passports, and other essential services.⁸⁷ After Mao's death in 1976, the Party used these same files to decide whether a person's purge should be reversed and, if so, whether to restore their party membership, employment, and standing.⁸⁸

In both Rwanda and China, the state kept extensive records and controlled their later use. Rwanda's government used the Gacaca records to track and intimidate political opponents.⁸⁹ In China, a person's file "followed you like a shadow," in the words of historian Yang Kuisong, and any documented criticism "could get you into trouble" years later.⁹⁰

VI. Censoring or Distorting Historical Narratives and Public Memory

Authoritarian regimes often deploy transitional justice as a strategic tool to reinforce a particular version of history that legitimizes the ruling party while marginalizing, distorting, or erasing alternative narratives. This pattern is most common in the use of memorialization and truth-seeking mechanisms such as truth commissions, memory laws, memorials, and museums. Authoritarian regimes have used these mechanisms to promote curated accounts of the past and strategically advantageous portrayals of current authorities—often as liberators or reformers—while silencing critics of their own abuses.

Rwanda's government has taken a heavy-handed approach to recognition and memorialization of victims of the 1994 genocide with measures that include a mandatory 100-day annual mourning period. Some Rwandans have expressed concerns about feeling coerced into remembering painful events that they would prefer to forget,⁹¹ embracing what one scholar has described as "chosen amnesia."⁹² The official memorialization framework centers on crimes committed by Hutu extremists against Tutsi victims, while largely excluding discussion of atrocities committed by the ruling Rwandan Patriotic Front during and after the conflict.⁹³

In China, the CCP has similarly curated official narratives of past trauma and restricted public memory and discussion. The 1981 *Resolution on Certain Questions in the History of Our Party Since the Founding of the People's Republic of China* reassessed Mao's rule, acknowledging "serious mistakes" including the Cultural Revolution while defending his overall legitimacy.⁹⁴ By doing so, the Party closed off debate over Mao's legacy and institutionalized a definitive historical account. More recently,

⁸⁷ Jie Yang, *The Politics of the Dang'an: Spectralization, Spatialization, and Neoliberal Governmentality in China*, 84 ANTHROPOLOGICAL Q. 507, 507 (2011).

⁸⁸ Long Yang, *Villagers, Cadres, and the Politics of Rehabilitation in Post-Mao China, 1979–1982*, in JUSTICE AFTER MAO, *supra* note 74, at 122, 124.

⁸⁹ See *supra* note 85 and accompanying text.

⁹⁰ YANG KUISONG, EIGHT OUTCASTS: SOCIAL AND POLITICAL MARGINALIZATION IN CHINA UNDER MAO 156 (Gregor Benton & Ye Zhen trans., 2019).

⁹¹ See, e.g., CLARK, *supra* note 85, at 281–307.

⁹² Buckley-Zistel, *supra* note 85, at 134 (describing "chosen amnesia" as voluntary rather than coerced and "a coping mechanism to . . . be able to live peacefully").

⁹³ CLARK, *supra* note 85, at 210–11.

⁹⁴ See XIAOMEI CHEN, STAGING CHINESE REVOLUTION: THEATER, FILM, AND THE AFTERLIVES OF PROPAGANDA 138 (2017).

“memory laws” and censorship have prohibited discussion of the Tiananmen Square massacre in textbooks, media, and all other public fora.⁹⁵

These cases demonstrate how authoritarian regimes have used truth-seeking and memorialization mechanisms to reinforce their power rather than advance the goals of reconciliation and prevention of recurrence with which these mechanisms are associated in transitions to democracy.

VII. International Signaling and Influence

As noted in the Introduction, critical scholars of transitional justice have documented the heavy influence of U.S. foreign policy and economic interests on the field’s early development. In many countries emerging from authoritarianism and civil wars in Latin America and Eastern Europe, Western proponents of transitional justice explicitly linked it with a broader geopolitical agenda promoting democratization and free market-oriented governance reforms as a bulwark against the spread of communism. Some have suggested that transitional justice itself, as implemented by the United States and other major Western donors, is a form of imperialism that reflects the persistent legacies of colonialism.⁹⁶

More recently, authoritarian powers including China and Russia have made efforts to influence transitional justice processes in other countries, both through public statements by government officials (including their representatives to the United Nations) and through bilateral funding of initiatives and programs. Russian officials have made public statements about transitional justice that echo many of the same themes and concerns expressed by Chinese officials. Russia’s Permanent Representative to the United Nations has made several statements directly challenging the United Nations’ approach to transitional justice in post-conflict settings and particularly its support for the International Criminal Court and ad hoc tribunals, which Russia has accused of politicization and interference in the sovereignty and internal affairs of other countries.⁹⁷ Although Russia has acknowledged that some forms of transitional justice may be beneficial for the goal of achieving “lasting peace,” pointing to local and traditional mechanisms as the most promising, it has cautioned against the pursuit of a “universal formula.”⁹⁸

Despite Russia and China’s criticisms of transitional justice, their statements above illustrate how they have selectively engaged in transitional justice discourse to send messages to their domestic and international audiences, often framed as resistance to the United Nations and the three Western permanent members of the Security Council. They have also taken steps to influence transitional

⁹⁵ See JEAN-PHILIPPE BÉJA, *THE IMPACT OF CHINA’S 1989 TIANANMEN MASSACRE* 18 (2010).

⁹⁶ See, e.g., Mutua, *supra* note 24, at 5 (describing the Western approach to transitional justice as “paternalistic and imperialistic”); Laurel E. Fletcher & Harvey M. Weinstein, *How Power Dynamics Influence the “North-South” Gap in Transitional Justice*, 37 BERKELEY J. INT’L L. 1, 10 (2018) (“For many, transitional justice strategies as currently devised become imperialism in a new guise that undercuts the possibility of justice and social repair.”).

⁹⁷ *Statement by Permanent Representative Vassily Nebenzia at UNSC Open Debate “Peacebuilding and Sustaining Peace: Diversity, State Building and the Search for Peace,”* PERMANENT MISSION OF THE RUSSIAN FEDERATION TO THE UNITED NATIONS (Oct. 12, 2021), https://russiaun.ru/en/news/sc_121021 (criticizing international courts and tribunals for being “used to consolidate the victory of one side of the conflict over the other, settle political scores, as well as for foreign powers’ intervention in the internal affairs of states that are weakened by conflict”).

⁹⁸ *Statement by Permanent Representative Vassily Nebenzia at the UN Security Council Meeting on Agenda Item “Peacebuilding and Sustaining Peace: Transitional Justice in Conflict and Post-Conflict Situations,”* PERMANENT MISSION OF THE RUSSIAN FEDERATION TO THE UNITED NATIONS (Feb. 13, 2020), https://russiaun.ru/en/news/sc_1302 (“Transitional justice is not always a key to peace. It is important not to go too far in prescribing the same medicine to all patients . . .”).

justice processes in other countries in the Global South, which they justify as protecting these countries from Western interference in their internal affairs. China has taken steps to influence Sri Lanka's post-war transitional justice process indirectly through diplomatic engagement as well as funding and investment in broader rule-of-law and stabilization initiatives.⁹⁹ Russia, while sheltering Syria's recently ousted President Bashar al-Assad and his family, sent a delegation to meet with Syria's new government to discuss its plans for transitional justice.¹⁰⁰

These examples illustrate how both Western and non-Western powers have instrumentalized transitional justice as a tool of international signaling, whether to project liberal democratic values or challenge international hierarchies and institutions.

VIII. Grassroots Transitional Justice as Resistance

Transitional justice mechanisms implemented by autocracies have been described as justice “facades”¹⁰¹ that advance the regime's own strategic, political, and economic interests, but they can also become sites of resistance for civil society and grassroots movements. In authoritarian regimes where official transitional justice processes are tightly controlled, civil society and grassroots movements will often organize in the shadow of the state to challenge or co-opt official state-sponsored institutions and mechanisms.¹⁰²

This pattern is consistent with a substantial literature on authoritarian legality and constitutionalism, which has found that legal institutions originally designed or co-opted as tools for political repression and social control can take on a life of their own, unintentionally creating space for individuals within the institutions or for external grassroots movements and civil society to express dissent, push for accountability, and demand more sweeping reforms.¹⁰³ In Egypt, where former President Hosni Mubarak's presidential autocracy created a relatively independent judiciary among other reforms aimed at strengthening rule of law to build international legitimacy and attract foreign investment, some judges seized the opportunity to rule in favor of opposition parties, labor unions, and human rights advocates in ways that challenged executive authority.¹⁰⁴

Transitional justice mechanisms originally created by authoritarian regimes to advance their own political and economic interests have had similar unintended effects. In Morocco, one of the strong autocracies identified in Table 1, the monarchy's efforts to control and interfere with the findings of the Equity and Reconciliation Commission (which was initially created as a limited tactical concession to appease domestic opposition and international critics) ultimately backfired by inspiring a broader mobilization by victims' associations and opposition activists who demanded more serious

⁹⁹ See, e.g., Press Trust of India, *supra* note 75; *China Donates Security Equipment to Sri Lanka*, XINHUA (Sept. 27, 2019), http://www.xinhuanet.com/english/2019-09/27/c_138429199.htm; Neville de Silva, *Xi's Trip Set to Firm up Sri Lanka Ties*, MINISTRY OF FOREIGN AFFS., FOREIGN EMP. & TOURISM (Sept. 17, 2014) (Sri Lanka), <https://mfa.gov.lk/en/xis-trip-set-to-firm-up-sri-lanka-ties-2>.

¹⁰⁰ *New Syria Leaders Discuss 'Justice' for Assad's Victims with Russian Delegation*, JORDAN TIMES (Jan. 29, 2025), <https://jordantimes.com/news/region/new-syria-leaders-discuss-justice-assads-victims-russian-delegation>.

¹⁰¹ ALEXANDER LABAN HINTON, *THE JUSTICE FACADE: TRIALS OF TRANSITION IN CAMBODIA* 5–7 (2018).

¹⁰² See, e.g., SUBOTIĆ, *supra* note 68, at 38–82.

¹⁰³ See, e.g., TOM GINSBURG & TAMIR MOUSTAFA, *RULE BY LAW: THE POLITICS OF COURTS IN AUTHORITARIAN REGIMES* 8 (2008) (arguing that courts in authoritarian regimes can serve as “critical sites of contention both among the ruling elite and between regimes and their citizens”).

¹⁰⁴ TAMIR MOUSTAFA, *THE STRUGGLE FOR CONSTITUTIONAL POWER: LAW, POLITICS, AND ECONOMIC DEVELOPMENT IN EGYPT* 118–77 (2007).

reforms and accountability.¹⁰⁵ The IER's public hearings functioned as sites for the "performance of human rights" that created expectations for accountability far beyond the monarchy's limited intentions, resulting in large-scale protests, sit-ins, and other public displays of dissent.¹⁰⁶

At times, civil society and grassroots actors bypass state-sponsored institutions entirely and create alternative forms of transitional justice. These efforts are often pursued by diaspora communities or exiles, who operate outside the territorial reach of state repression. In Myanmar, Rohingya, Kachin, and Burman human rights campaigners convened a "people's tribunal" in London and Kuala Lumpur in 2017 to investigate crimes committed against ethnic and religious minorities by the military.¹⁰⁷

In other cases, grassroots transitional justice initiatives have been implemented covertly inside authoritarian countries despite the high likelihood that participants would be punished harshly if caught. In Iran, where Ayatollah Khomeini ordered the summary execution of thousands of political prisoners in 1988, family members and activists held covert memorial ceremonies at Khavaran Cemetery, one of the regime's mass burial sites, prompting the government to close its gates and remove photos and flowers.¹⁰⁸

Russia provides another example of grassroots transitional justice activism in the shadow of authoritarian rule. Selbi Durdiyeva has described Russia as an overlooked case of "transitional justice from below," arguing that "even in authoritarian contexts, civil society can adopt imaginative, piecemeal, and at times unconventional ways of seeking justice outside and in the absence of official and institutionalised transitional justice measures."¹⁰⁹ In recent years, children of Russian citizens who were deported by the former Soviet Union (often described as "children of the gulag") have organized to seek recognition as victims of forced displacement, family separation, property loss, and psychological trauma, among other harms perpetrated by Joseph Stalin's government.¹¹⁰ In response, Russian authorities have targeted advocates of transitional justice including Grigory Vaypan, a lawyer and the lead author of a 2022 report entitled *Overcoming the Past: An Overview of Memorial's Transitional Justice Jurisprudence in Russia*,¹¹¹ whom Russia's Ministry of Justice designated as a "foreign agent" and

¹⁰⁵ Luke Wilcox, *Reshaping Civil Society Through a Truth Commission: Human Rights in Morocco's Process of Political Reform*, 3 INT'L J. TRANSITIONAL JUST. 49, 51 (2009) (arguing that the IER led to "[g]reater expectations for power and a growing desire within civil society to exercise control over public space").

¹⁰⁶ SUSAN SLYOMOVICS, THE PERFORMANCE OF HUMAN RIGHTS IN MOROCCO 9 (2005).

¹⁰⁷ Maaïke Matelski, Rachel Dijkstra & Brianne McGonigle Leyh, *Multi-Layered Civil Society Documentation of Human Rights Violations in Myanmar: The Potential for Accountability and Truth-Telling*, 14 J. HUM. RTS. PRAC. 794, 818 (2022); see also Permanent Peoples' Tribunal, *Session on State Crimes Allegedly Committed in Myanmar Against the Rohingyas, Kachins and Other Groups* (Sept. 18–22, 2017), <http://permanentpeopletribunal.org/wp-content/uploads/2017/11/PPT-on-Myanmar-Judgment-FINAL.pdf>.

¹⁰⁸ Hoshang Amiri, *Iranian Authorities Close Khavaran Cemetery to Families of Prisoners Executed in 1980s*, IRAN FOCUS (Aug. 24, 2024), <https://iranfocus.com/human-rights/51903-iranian-authorities-close-khavaran-cemetery-to-families-of-prisoners-executed-in-1980s>.

¹⁰⁹ SELBI DURDIYEVA, THE ROLE OF CIVIL SOCIETY IN TRANSITIONAL JUSTICE: THE CASE OF RUSSIA 28 (2023).

¹¹⁰ See *id.* at 31–32.

¹¹¹ INT'L FED'N FOR HUM. RTS., OVERCOMING THE PAST: AN OVERVIEW OF MEMORIAL'S TRANSITIONAL JUSTICE JURISPRUDENCE IN RUSSIA (2022), https://www.fidh.org/IMG/pdf/overcoming_the_past_0aan_overview_of_memorial_s_transitional_0ajustice_jurisprudence_in_russia.pdf.

accused of spreading “false information” about Russia’s government in connection with his representation of gulag children.¹¹²

These examples underscore that even in highly repressive contexts, grassroots and civil society actors engage with transitional justice as a form of resistance. Sometimes they appropriate official institutions for oppositional ends; other times they construct parallel or symbolic mechanisms of justice to contest authoritarian narratives. While authoritarian regimes attempt to control history and limit accountability, their very engagement with transitional justice can open unanticipated spaces for opposition.

IX. Conclusion

Transitional justice, despite its origins in the United States’ efforts to promote transitions from communism to democratic capitalism in post-Soviet countries, is increasingly found in authoritarian states. This Chapter has contributed to a growing literature on new forms of transitional justice in contexts outside the traditional “canon” of well-studied cases, including South Africa, Northern Ireland, and Chile,¹¹³ and in regions that have received less scholarly attention such as the Middle East and Asia. In authoritarian states and backsliding democracies, transitional justice is often used by governments to consolidate power, undermine opposition, build legitimacy in the eyes of domestic and international audiences, and exercise political and economic influence over other countries to which they provide foreign humanitarian and development assistance. At the same time, transitional justice is often a site of contestation and resistance *against* such governments.

This Chapter concludes by identifying open questions and directions for future research. First, what are the effects of authoritarian transitional justice on important outcomes including regime stability; social movements and protests; the likelihood of armed conflict, coups, or other regime-changing events; and economic development and integration into the international community and regional blocs that impose human rights or democracy conditions on member states such as the European Union and the Organization of American States? Second, to what extent do grassroots and civil society initiatives in authoritarian settings succeed in reshaping official processes or building alternative forms of transitional justice that endure? More comparative cross-national research is needed to more systematically describe and explain variation in forms of authoritarian transitional justice across different contexts and corresponding differences in outcomes. Several recent and forthcoming datasets relevant to transitional justice will enable more scholars to explore these and other questions.¹¹⁴

¹¹² *Russia: Human Rights Lawyer Grigory Vaypan Labelled as “Foreign Agent,”* INT’L FED’N FOR HUM. RTS. (July 29, 2024), <https://www.fidh.org/en/issues/human-rights-defenders/russia-human-rights-lawyer-grigory-vaypan-designated-as-foreign-agent>.

¹¹³ See Carpenter, *supra* note 35, at 601 (citing Nuremberg and South Africa as two examples of transitional justice that have been particularly influential in shaping this “canon”).

¹¹⁴ See, e.g., Geoff Dancy, Hunjoon Kim & Eric Wiebelhaus-Brahm, *The Turn to Truth: Trends in Truth Commission Experimentation*, 9 J. HUM. RTS. 45, 46 (2010); Kelebogile Zvobgo, *Demanding Truth: The Global Transitional Justice Network and the Creation of Truth Commissions*, 64 INT’L STUD. Q. 609, 610 (2020); Helga Malmin Binningsbø, Cyanne E. Loyle, Scott Gates & Jon Elster, *Armed Conflict and Post-Conflict Justice, 1946–2006: A Dataset*, 49 J. PEACE RSCH. 731, 732–33 (2012); Genevieve Bates, Ipek Cinar & Monika Nalepa, *Accountability by Numbers: A New Global Transitional Justice Dataset (1946–2016)*, 18 PERSPS. ON POL. 161, 162–63 (2020); Levy, Revkin & Talibova, *supra* note 5.

The patterns of authoritarian transitional justice described in this Chapter also raise difficult normative questions. Should international donors, human rights organizations, and scholars engage with authoritarian transitional justice processes that may offer material benefits to victims, but risk legitimizing repressive regimes? These concerns are compounded by ethical and methodological challenges. Ethical and security considerations make it very difficult for outside scholars to conduct research in authoritarian contexts, and even when such research is possible, it may endanger local interlocutors and research partners. An additional challenge is that preference falsification makes it difficult for researchers to discern whether individuals' participation in or stated support for government processes is genuine or instead reflects strategic compliance, coercion, and fear. Moreover, scholars will need to grapple with the possibility that some individuals and communities may genuinely prefer relatively stable authoritarian governments that deliver security and basic services over fragile democracies prone to corruption, armed conflict, or state failure.